



Constitutional and Political Development of Pakistan 1971-88

Background (1971)

Bangladesh Liberation War

The liberation of East Pakistan was a pivotal moment in the history of Pakistan. The war, which resulted in the formation of Bangladesh in December 1971, stemmed from ethnic, linguistic, and economic disparities between East and West Pakistan. The brutal conflict and subsequent humanitarian crisis highlighted failures in governance and representation, creating deep divisions within the remaining territory of Pakistan.

Impact on National Identity

The loss of East Pakistan forced West Pakistan to confront its national identity. Issues of regionalism, ethnic tensions, and governance became central as leaders sought to unify a diverse populace and manage the psychological fallout from the separation.

The 1973 Constitution

Formation and Key Features

The 1973 Constitution was a landmark document aimed at establishing stability and addressing the challenges faced by Pakistan post-1971.

- **Parliamentary Democracy:** The Constitution established a bicameral legislature, consisting of the National Assembly and the Senate, intended to promote representative governance.
- **Islam as State Religion:** Article 2 declared Islam as the state religion, and subsequent articles ensured that laws would be aligned with Islamic principles.

Rights and Freedoms

The Constitution included a Bill of Rights that guaranteed fundamental freedoms, including freedom of speech, assembly, and religion. However, these rights were often curtailed during emergencies, undermining their effectiveness in practice.

Zulfikar Ali Bhutto's Government (1971-1977)

Economic and Social Reforms

Zulfikar Ali Bhutto, a charismatic leader, sought to transform Pakistan through significant reforms:

- **Nationalization:** In 1972, major industries, banks, and educational institutions were nationalized. The intent was to reduce wealth disparities and promote state control over the economy.
- **Land Reforms:** Bhutto introduced measures aimed at redistributing land from large landowners to tenants, attempting to address feudal structures and agrarian issues.

Political Challenges

Bhutto's reforms faced significant opposition:

- **Authoritarian Tendencies:** His government became increasingly authoritarian, with crackdowns on dissent and political opponents. This alienated various political factions and civil society.
- **Ethnic and Regional Tensions:** The PPP's dominance in West Pakistan led to discontent in regions like Balochistan and Sindh, where local parties sought greater autonomy.

Crisis of Legitimacy

- Allegations of electoral fraud in the 1977 elections sparked widespread protests, culminating in the military coup led by General Zia-ul-Haq. The political crisis highlighted the vulnerabilities of Bhutto's administration.

General Zia-ul-Haq's Martial Law (1977-1988)

Imposition of Martial Law

On July 5, 1977, Zia-ul-Haq imposed martial law, suspending the 1973 Constitution and banning political parties. His regime was characterized by:

- **Authoritarian Governance:** Zia ruled with an iron fist, sidelining political leaders, including Bhutto, who was arrested and later executed on charges of conspiracy to commit murder.
- **Military Control:** Key military personnel were appointed to govern various provinces, consolidating military influence over civil administration.

Islamization Policies

Zia's regime marked a significant shift towards Islamization:

- **Hudood Ordinances (1979):** These laws established a legal framework based on Islamic principles, affecting criminal law, particularly concerning theft, adultery, and alcohol consumption. Critics argued that these laws disproportionately affected women and marginalized groups.
- **Cultural Shifts:** Zia's government promoted a conservative interpretation of Islam, leading to changes in social norms, education, and public life.

Constitutional Changes and Amendments

In 1985, Zia restored the 1973 Constitution with significant amendments:

- **Eighth Amendment:** This amendment significantly increased presidential powers, allowing the President to dissolve the National Assembly and appoint military officials, effectively centralizing authority.
- **Political Framework:** While the parliamentary system was restored, it was heavily influenced by Zia's authoritarian practices, limiting genuine democratic governance.

Political Opposition and Resistance Movements

Emergence of Opposition Groups

Opposition to Zia's regime grew throughout the 1980s:

- **Pakistan People's Party (PPP):** Led by Benazir Bhutto, the PPP became a focal point of resistance against Zia's rule, advocating for democracy and civil rights.
- **Other Political Entities:** Various parties, including the Pakistan Muslim League and smaller regional parties, rallied against Zia's authoritarianism.

Movement for the Restoration of Democracy (MRD)

In the early 1980s, the MRD emerged as a coalition of opposition parties demanding the restoration of democracy and repeal of martial law:

- **Mobilization and Protests:** The MRD organized widespread protests, strikes, and civil disobedience campaigns, facing brutal repression from Zia's regime.
- **Significance:** The movement highlighted the growing desire for democratic governance and civil rights among the populace.

International Relations and Foreign Policy

During Zia-ul-Haq's time in power (1977-1988), Pakistan's international relations were deeply influenced by the Cold War, especially after the Soviet Union invaded Afghanistan in 1979. The U.S. saw Pakistan as a vital ally in curbing Soviet expansion, which led to a surge in military and economic support for Zia's regime. This aid not only strengthened Pakistan's military but also helped Zia maintain control amid growing opposition at home. The CIA worked closely with Pakistan's intelligence agency, the ISI, to train and arm Afghan Mujahideen fighters, positioning Pakistan as a key player in the Afghan conflict.

This partnership allowed Zia to frame his government as crucial for national security, even as his regime was marked by significant human rights abuses. Additionally, his policies of Islamization found fertile ground, affecting both Pakistani society and the broader region.

For deeper knowledge into this complex period, Ayesha Jalal's *"The Struggle for Pakistan"* and Ian Talbot's *"Pakistan: A Modern History"* offer valuable insights.

Transition to Civilian Rule (1988)

Zia's Death and Power Vacuum

- Zia-ul-Haq's sudden death in a plane crash on August 17, 1988, left a big gap in Pakistan's leadership. His unexpected death led to a lot of rumors and theories about what happened, creating confusion and instability. With Zia gone, many political groups that had been quiet for years started to come forward, leading to a tense atmosphere as different factions vied for power.

Elections of 1988

- In November 1988, general elections were held, marking an important moment for Pakistan as it returned to civilian rule after military control. Benazir Bhutto, the daughter of former Prime Minister Zulfikar Ali Bhutto, became the first female Prime Minister of Pakistan. Her election was a significant change, showing progress for women in politics and raising hopes for a democratic future. Bhutto promised economic improvements and more freedoms for people, but her government faced challenges, including political unrest and the ongoing influence of the military.

Key Themes and Ongoing Implications

Enduring Military Influence

During Zia-ul-Haq's rule, the military became a powerful force in Pakistan's politics. Its role in government shaped how politics worked in the country, making military influence a constant factor in decision-making and governance.

Islamization and Legal Framework

Zia's era brought important legal changes that still affect Pakistan today. The Hudood Ordinances and other Islamic laws introduced during his time impacted women's rights and societal norms, leading to ongoing debates about gender issues and the law.

Political Fragmentation and Partisanship

This period deepened political divides in Pakistan. Political groups became very confrontational, often focusing on fighting against each other instead of working together, which set a tone of division that continues to affect politics today.

Human Rights and Civil Liberties

Zia's rule was also marked by serious human rights abuses. The government suppressed dissent, used censorship, and limited civil society, creating an environment where people were afraid to speak out, and many of these issues have persisted in various forms over the years.

Conclusion:

The constitutional and political development of Pakistan from 1971 to 1988 was a time of major changes and challenges. This period saw a complex political scene shaped by military rule, efforts to establish democracy, and the blending of religion with politics. After the traumatic events of the 1971 civil war and the loss of East Pakistan, the country faced struggles in finding a stable government. Zia-ul-Haq's military takeover in 1977 marked a turning point, as he imposed strict rule and implemented Islamic laws that affected many aspects of life.

These years were crucial in setting the stage for Pakistan's future political landscape. The tensions between military power and democratic aspirations continued to shape the nation, influencing political parties, civil rights, and social norms. Understanding this history is vital for grasping today's political issues in Pakistan, such as the ongoing fight for democracy, human rights, and the military's role in governance. The legacies of this era continue to resonate, affecting how Pakistan navigates its path in the 21st century.